

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Ella Mintz	Team: Squad #8	CCRB Case #: 201508066	☐ Force	☒ Discourt.	☐ U.S.
			☐ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Wednesday, 09/23/2015 12:19 PM	Location of Incident: 212 Street and Jamaica Avenue	Precinct: 105	18 Mo. SOL 3/23/2017	EO SOL 3/23/2017	
Date/Time CV Reported Wed, 09/23/2015 12:52 PM	CV Reported At: Precinct	How CV Reported: In-person	Date/Time Received at CCRB Wed, 09/23/2015 1:39 PM		
Complainant/Victim	Type	Home Address			
Subject Officer(s)	Shield	TaxID	Command		
1. POM James Delargy	03769	943147	105 PCT		
Witness Officer(s)	Shield No	Tax No	Cmd Name		
1. POM Yodaryllyn Moronta	01268	949368	105 PCT		
Officer(s)	Allegation		Investigator Recommendation		
A.POM James Delargy	Discourtesy: PO James Delargy spoke discourteously to § 87(2)(b)				

Case Summary

At approximately 12:19PM on September 23, 2015 § 87(2)(b) was driving on 212th Street and Jamaica Avenue in Queens. PO James Delargy and PO Yodaryl Moronta, both of the 105th Precinct, pulled § 87(2)(b) over for disobeying pavement markings and tinted windows. PO Moronta allegedly came to § 87(2)(b)'s driver side window while PO Delargy went to the passenger side. When asked by PO Moronta why he believed he was being pulled over, § 87(2)(b) responded, "Because I'm black." Allegedly, PO Delargy came to § 87(2)(b)'s driver's side window and said, "That's a bunch of fucking bullshit." (**Allegation A**) § 87(2)(b) was issued two summonses by PO Delargy.

Mediation, Civil and Criminal Histories

- § 87(2)(b) rejected mediation in both a phone statement on September 24, 2015 (Board Review 01) and during his in-person statement on November 18, 2015. (Board Review 02)
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)] .

Civilian and Officer CCRB Histories

- This is the first CCRB complaint filed by § 87(2)(b) (Board Review 03)
- PO Delargy has been a member of service for eight years and this is the fourth CCRB complaint filed against him. This is the first discourtesy allegation against PO Delargy; § 87(2)(g) . (Board Review 04)

Findings and Recommendations

Allegation A –Discourtesy: PO James Delargy spoke discourteously to § 87(2)(b)

In his original complaint filed at the 105th Precinct stationhouse on the day of the incident (September 23, 2015), § 87(2)(b) stated that he moved into the left lane on Jamaica Avenue to avoid a double parked car. When he moved back into the right lane, PO Delargy and PO Moronta pulled him over. When § 87(2)(b) asked what he did wrong, PO Delargy said, "fuck that shit" and "bullshit." (Board Review 05)

§ 87(2)(b) testified (Board Review 02) that on September 23, 2015 he was driving alone from his residence at § 87(2)(b) to a Jamaican restaurant located at Springfield and Hempstead Avenue. § 87(2)(b)'s windows were rolled down at the time of the incident. Occasionally, there is a truck double parked in the right lane at Jamaica Avenue. This situation may require a driver to pass the truck by going into the left turn lane, even if they don't need to make the left turn onto 212th Street. § 87(2)(b) could not recall if that was the situation on the day of the incident, but it might have been possible.

§ 87(2)(b) was pulled over by PO Moronta and PO Delargy. PO Moronta came to his driver's side door and PO Delargy went to the passenger side door. § 87(2)(b) asked PO Moronta what the problem was and PO Moronta said, "You got tinted windows." PO Moronta asked for § 87(2)(b)'s license and registration § 87(2)(b)

§ 87(2)(b)

§ 87(2)(b) asked what he did again and then said, “I already know. You’re pulling me over because I’m black. You have nothing to pull me over for.” At this point, PO Delargy got upset and came to the driver’s side window and told § 87(2)(b) “That’s a bunch of fucking bullshit.” PO Delargy then issued § 87(2)(b) two summonses, one for disobeying pavement markings and one for tinted windows. (Board Review 06) § 87(2)(b) feels that he was racially profiled.

In his testimony on the CCRB (Board Review 07), PO Moronta stated that PO Delargy had witnessed § 87(2)(b) driving in the left lane without making a left turn. PO Moronta could not recall if § 87(2)(b)’s windows were rolled down at the time of the incident. PO Delargy took the lead in the car stop and approached § 87(2)(b)’s driver’s side window. PO Moronta could not hear PO Delargy’s initial conversation with § 87(2)(b). PO Moronta heard § 87(2)(b) say, in a loud tone of voice, “You pulled me over because I’m black.” § 87(2)(b) seemed aggravated at the time, which caused PO Moronta to come to the driver’s side of the vehicle in case the situation escalated.

PO Moronta could not recall if § 87(2)(b) was still complaining about being stopped due to his race when PO Moronta arrived at the driver’s side window. § 87(2)(b)

Neither PO Delargy nor PO Moronta responded to § 87(2)(b)’s allegation. PO Delargy’s demeanor was normal at the time of the incident. PO Delargy did not say, “That’s a bunch of fucking bullshit” to § 87(2)(b) or use any profanity at all during the course of this interaction.

In regards to this incident, PO Delargy wrote the following narrative in his memo book “Called me a racist for pulling him over. Driver had tinted windows so I didn’t know motorist was a m black until I stopped him and had him roll down his window. Said I only pulled him over because he was black. I never cursed at him and only showed him courtesy (sic) and respect.” (Board Review 08)

In his testimony at the CCRB (Board Review 09) PO Delargy corroborated PO Moronta’s version of events; PO Delargy saw § 87(2)(b) go to a left turn only lane without making the left on 212th Street. § 87(2)(b)’s windows were rolled up at the time of the incident and PO Delargy could see that the windows were tinted. PO Delargy pulled over § 87(2)(b) and went to the driver’s side window while PO Moronta went to the passenger side window. § 87(2)(b) rolled down his window and the first thing he said was, “the only reason you’re pulling me over is because I’m black and you’re a racist.” PO Delargy said, “Sir, no. I pulled you over because there’s a pavement sign saying that you had to make a left on 212th street and you went straight. You also have tinted windows.” Within 15 seconds of the car stop, PO Delargy took out his tint meter and measured the tint on § 87(2)(b)’s windows; they were determined to be illegal.

PO Moronta heard § 87(2)(b) call PO Delargy a racist and came over to the driver’s side with PO Delargy. PO Delargy asked § 87(2)(b) for his license and registration. § 87(2)(b) told PO Delargy, “No, you’re racist. You only pulled me over ‘cause I’m black.” PO Delargy explained that prior to the stop, he was not aware § 87(2)(b) was black because his windows

were tinted. After being asked a couple of times for his license and registration, § 87(2)(b) provided this information for PO Delargy. At no point did PO Delargy use profanity toward § 87(2)(b) or say, “That’s a bunch of fucking bullshit.”

When PO Delargy went back to § 87(2)(b) s car to issue the two summonses, § 87(2)(b) gave PO Delargy a snarl which PO Delargy interpreted to be an “F U” face. PO Delargy went back to his vehicle and told PO Moronta that he guaranteed that § 87(2)(b) would be making a CCRB complaint due to his demeanor. While still in the van, PO Delargy wrote in his memo book that he did not curse at § 87(2)(b) in order to protect himself against the complaint that he absolutely knew was coming. PO Delargy also stated that § 87(2)(b) never accused him of cursing during the course of the incident.

Patrol Guide procedure 203-09 states that officers must be “courteous and respectful” in their conduct with the public. (Board Review 10)

§ 87(2)(g)

§ 87(2)(g)

Squad: ____

Investigator:	_____	_____	_____
	Signature	Print	Date

Pod Leader:	_____	_____	_____
	Title/Signature	Print	Date

Attorney:	_____	_____	_____
	Title/Signature	Print	Date